

PETITIONER: RESPONDENT:	CASE NUMBER:
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SPOUSAL, DOMESTIC PARTNER, OR FAMILY SUPPORT ORDER ATTACHMENT

- TO ☐ **Findings and Order After Hearing (form FL-340)** ☐ **Judgment (form FL-180)**
☐ **Restraining Order After Hearing (CLETS-OAH) (form DV-130)** ☐ **Other (specify):**
☐ **Parties' Stipulation (Written Agreement) dated (specify):** _____

☐ **THE COURT FINDS** ☐ **THE PARTIES STIPULATE (AGREE)**

Specify if this attachment is about an order for temporary support or a judgment for permanent support (check either 1 or 2 below).

1. ☐ **This attachment relates to temporary spousal or domestic partner support.**

- a. ☐ This order attachment modifies an order or agreement for temporary support entered on (date):
 b. **Net income.** The parties' monthly income and deductions are as follows (complete (1), (2), or both):

		Total gross monthly <u>income</u>	Total monthly <u>deductions</u>	Total hardship <u>deductions</u>	Net monthly disposable <u>income</u>
(1) Petitioner:	☐ receiving TANF/CalWORKS	\$	\$	\$	\$
(2) Respondent:	☐ receiving TANF/CalWORKS	\$	\$	\$	\$

- c. ☐ A printout of a computer calculation of the parties' financial circumstances is attached for all required items not filled out above (for temporary support only).

2. ☐ **This attachment relates to a judgment for permanent spousal or domestic partner support.**

- a. ☐ This order attachment modifies a judgment entered on (date):
 b. ☐ The parties were married for (specify): _____ years and _____ months.
 c. ☐ The parties were registered as domestic partners or the equivalent for (specify): _____ years and _____ months.
 d. Family Code section 4320 factors (check either (1) or (2) below, then complete (3)).
 (1) ☐ The parties agreed to some or all of the factors as stated in *Spousal or Domestic Partner Support Declaration Attachment* (form FL-157) or in a similar written declaration filed with the court.
 (2) ☐ The court considered the parties' declarations and supporting documents regarding each Family Code section 4320 factor as stated in testimony, in *Spousal or Domestic Partner Support Declaration Attachment* (form FL-157), or in a similar written declaration filed with the court.
 (3) The parties' agreement, or the court's findings, on Family Code section 4320 factors are (specify):
 (A) ☐ included in [Attachment 2d\(3\)\(A\)](#).
 (B) ☐ included in *Spousal or Domestic Partner Support Factors Under Family Code Section 4320—Attachment* (form _____).
 (C) ☐ specified below:

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2. e. ☐ The parties are both self-supporting.
 f. ☐ The standard of living established during the marriage or domestic partnership was (*describe*): ☐ [See Attachment 2f.](#)

g. ☐ The court finds that the parties have knowingly, intelligently, and voluntarily entered into a stipulation.

3. **Jurisdiction**

- a. ☐ The issue of support for the ☐ petitioner ☐ respondent is reserved for later determination.
 b. ☐ The court terminates jurisdiction over the issue of support for the ☐ petitioner ☐ respondent.
 c. ☐ The court's jurisdiction over the issue of support will end on (*specify date*):

4. **Support amount and payment terms**

- a. The ☐ petitioner ☐ respondent must pay to the ☐ petitioner ☐ respondent
 as ☐ temporary ☐ permanent ☐ spousal support ☐ family support ☐ domestic partner support
 the following amount each month: \$
 b. Support payments will begin (*date*):
 c. Support payments are:
 (1) ☐ payable through (*specify end date*):
 (2) ☐ payable on the: day of each month.
 (3) ☐ Other (*specify*):

d. ☐ Support must be paid by ☐ check, money order, or cash ☐ other method (*specify*):

5. **Earnings assignment**

- a. ☐ An earnings assignment for the support will issue as requested by ☐ petitioner ☐ respondent.
Note: The payor of spousal, family, or domestic partner support is responsible for the payment of support directly to the recipient until support payments are deducted from the earnings, and for any support not paid by the assignment.
 b. ☐ Service of the earnings assignment is stayed provided the payor is not more than (*specify number*): days late
 in paying spousal, family, or domestic partner support.

6. **Termination (end) of support**

- a. By law, unless the parties otherwise agree in writing, the support payor's obligation to pay support will end when either party dies or the support payee remarries or registers a new domestic partnership.
 b. ☐ **Parties' agreement**
 The parties agree that the support payor's obligation to pay support will not end as described in 6a. Instead, the support payor's obligation to pay support will continue until (*specify below the terms of your agreement about when the support payee's obligation to pay support will end*):

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7. ☐ **Family support orders.** This order is for family support.
- Both parties must complete and file with the court a *Child Support Case Registry Form* (form) within 10 days of the date of this order.
 - The parents must notify the court of any change of information submitted within 10 days of the change by filing an updated form.
 - A *Notice of Rights and Responsibilities Regarding Child Support* (form FL-192) must be attached to the court order.
8. ☐ **Notice of change of employment**
The parties must inform each other in writing within 10 days of any change of employment, and include the new employer's name, address, and telephone number.
9. ☐ **Duty to become self-supporting**
- Notice: It is the goal of this state that each party must make reasonable good-faith efforts to become self-supporting as provided in Family Code section 4320. Failure to make reasonable good-faith efforts may be one of the factors considered by the court as a basis for modifying or terminating support.
 - ☐ The ☐ petitioner ☐ respondent should make reasonable good-faith efforts to become self-supporting.
 - ☐ Other (*specify*):
10. ☐ **Attachment to Restraining Order After Hearing (form DV-130)**
- This form is attached to *Restraining Order After Hearing (CLETS-OAH) (Order of Protection)* (form DV-130).
 - The orders issued on this form (FL-343) do not expire on termination of the restraining orders issued on form DV-130.
11. ☐ **Other orders or agreements (*specify*):**

NOTICE: Any party required to pay support must pay interest on overdue amounts at the "legal" rate, which is currently 10 percent.

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